Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held in the Council Chambers, Ajax Town Hall and Electronically on Monday, September 16, 2024

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		N. Henry
		L. Bower

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Mayor Collier called the meeting to order at 1:02 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Adoption of the Minutes

Moved by: M. Crawford
Seconded by: S. Lee

That the minutes of the Regular Meeting of Council held on June 24, 2024 be adopted.
CARRIED

Moved by: M. Crawford
Seconded by: S. Lee

That the minutes of the Special Meeting of Council held on August 13, 2024 be adopted.
CARRIED

Moved by: M. Crawford
Seconded by: S. Lee

That the minutes of the Closed Meeting of Council held on August 13, 2024 be adopted.
CARRIED

4. Question Period

Mayor Collier invited questions on agenda items from those present.

5. Delegations, Presentations, and Public Meetings

With the consent of Members present, item 5.7 was advanced in the order business.

5.7 Presentation: DRPS Board – Community Safety in Our Region – 2024

Garry Cubitt, Vice-Chair, Durham Regional Police Service Board, delivered a presentation regarding Community Safety in Our Region.

Council Members asked questions related to the presentation. Peter Moreira, Police Chief, Durham Regional Police Service and Mayor Collier, responded to questions from Council Members.

Motion to Suspend the Rules of Procedure

Moved by: S. Lee
Seconded by: J. Dies

That the Rules of Procedure be suspended in order to hear an unscheduled delegation.

CARRIED
on 2/3rds

5.1 **Proclamation: Christian Heritage Month**

Molly Banerjai, CEO, Christian Music Festival, delivered a presentation related to Christian Heritage Month.

Mayor Collier presented the proclamation certificate and proclaimed December 2024 as Christian Heritage Month in the Town of Ajax.

On behalf of Council, Mayor Collier thanked M. Banerjai for her presentation.

5.2 **Proclamation: World Homeless Day**

Daniel Cullen, Co-Chair, The Gap Committee and Empress, Co-Chair, The Gap Committee, delivered a presentation related to World Homeless Day.

Council Members asked questions related to the presentation. D. Cullen responded to questions from Council Members.

Mayor Collier presented the proclamation certificate and proclaimed October 10, 2024 as World Homeless Day in the Town of Ajax.

On behalf of Council, Mayor Collier thanked D. Cullen and Empress for their presentation.

5.3 **Delegation: Recognition of Subhan Islamic Association – A New Member of the Ajax Family**

Ahmed Sharifi, Board Chair, Subhan Islamic Association, provided an overview of the Subhan Islamic Association.

Council Members asked questions related to the organization. A. Sharifi responded to questions from Council Members.

Mayor Collier presented the recognition certificate and extended congratulations on the acquisition of a place of Worship.

On behalf of Council, Mayor Collier thanked A. Sharifi for his delegation.

5.4 **Delegation: Issues Impacting Commercial Avenue Neighbourhood**

Tameka Mercurius, Ajax Resident, delivered a presentation related to issues negatively impacting the Commercial Avenue neighbourhood. Mayor Collier responded to concerns from the delegate.

Council Members asked questions related to the presentation. T. Mercurius, Geoff Romanowski, Director of Planning & Development Services, Meina Lutfi, Business Engagement Advisor, Mayor Collier, and Kassandra Cruciano, Manager of Strategic Initiatives, responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked T. Mercurius for her delegation.

5.5 **Delegation: Issues Impacting Commercial Avenue Neighbourhood**

Graham Horne, Ajax Resident, expressed concerns related to issues negatively impacting the Commercial Avenue neighbourhood.

Council Members asked questions related to the delegation. G. Horne responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked G. Horne for his delegation.

5.6 **Delegation: Overnight Parking**

Ron Caesar, Ajax Resident, expressed concerns related to overnight parking in the Commercial Avenue neighbourhood.

On behalf of Council, Mayor Collier thanked R. Caesar for his delegation.

5.8 **Presentation: 2024 Capital Projects Update**

Mayor Collier noted that item 5.8 had been withdrawn.

5.9 **Public Meeting: Official Plan Amendment Application OPA24-A3**
Zoning By-law Amendment Application Z7/24
Southeast Corner of Rossland Road West & Harkins Drive

Maylor Collier noted that the proposed by-laws namely Official Plan Amendment Application OPA24-A3 and Zoning By-law Amendment Application Z7/24 were brought forward under the authority of Section 284.11.1 of the *Municipal Act* and in accordance with Ontario Regulation 580/22, “Provincial Priorities”.

Mayor Collier declared the meeting to be a public meeting and invited comments and questions from the public.

Paul Bignell, Ajax resident, expressed concerns regarding community safety, traffic impacts, and traffic congestion. Mayor Collier responded to concerns from the delegate.

Council Members asked questions related to the proposed development. P. Bignell responded to questions from Council Members.

There being no further questions or comments from the public, Mayor Collier closed the public meeting and invited comments from the applicant.

TJ Cieciura, President/Consultant, Design Plan Services Inc., expressed support for the proposed by-laws.

Council Members asked further questions related to the proposed development. G. Romanowski and TJ Cieciura, responded to questions from Council Members.

5.10 **Proclamation: Franco-Ontarian Day**

Mayor Collier proclaimed September 25, 2024 as Franco-Ontarian Day in the Town of Ajax.

Council recessed at 4:08 p.m.

Council resumed at 4:15 p.m.

6. Correspondence

Members separated correspondence items 6.1, 6.9, 6.10, 6.11, 6.12. 6.13, 6.14, 6.15, 6.16, 6.17 and 6.18 for discussion.

Moved by: R. Tyler Morin
Seconded by: J. Dies

That the balance of the report (Items 6.2, 6.3, 6.4, 6.5, 6.6, 6.7 and 6.8) dated September 16, 2024 containing Items of Correspondence be received for information.

CARRIED

Item 6.1

Moved by: L. Bower
Seconded by: R. Tyler Morin

That Item 6.1 (“Town of Ajax – Proclamations issued by the Mayor’s Office”) of the Correspondence Report be received for information.

CARRIED

Items 6.9, 6.10 and 6.11

Moved by: N. Henry
Seconded by: M. Crawford

That Item 6.9 (“Town of Bradford West Gwillimbury – AMO and OMA Joint Resolution Health Campaign”), Item 6.10 (“Township of North Dundas – Request for the Provincial Government to Recognize the Physician Shortage in the Township of North Dundas”) and Item 6.11 (“Township of Lucan Buddulph - AMO/OMA Joint Health Resolution Campaign – Physician Shortage”) of the Correspondence Report be endorsed.

CARRIED

Items 6.12, 6.13, 6.14, 6.15, 6.16, 6.17 and 6.18

Moved by: S. Lee
Seconded by: M. Crawford

That Item 6.12 (“Town of Limerick – AMO/OMA Joint Health Resolution Campaign – Physician Shortage”), Item 6.13 (“Municipality of Wawa – AMO/OMA Joint Health Resolution Campaign – Physician Shortage”), Item 6.14 (“City of Toronto – Requesting the Province to Support Family Physicians”), Item 6.15 (“Township of Lake of Bays – Request for the Provincial Government to Recognize the Physician Shortage in the Township of Lake of Bays”), 6.16 (“Township of Larder Lake – AMO/OMA Joint Health Resolution Campaign – Physician Shortage”), 6.17 (“Township of Terrace Bay – AMO/OMA Joint Health Resolution MD Shortage in Ontario”), and 6.18 (“Town of Bracebridge – AMO/OMA Joint Health Resolution Campaign on Physician Shortage”) of the Correspondence Report be endorsed.

CARRIED

7. Reports

7.1. Community Affairs & Planning Committee Report

7.1.1 Community Affairs & Planning Committee, September 3, 2024

Moved by: N. Henry
Seconded by: S. Lee

That the Community Affairs & Planning Committee Report dated September 3, 2024 be adopted.

CARRIED

7.2. General Government Committee Report

7.2.1 General Government Committee, September 9, 2024

Moved by: R. Tyler Morin
Seconded by: N. Henry

That the General Government Committee Report dated September 9, 2024 be adopted.

CARRIED

7.3 Summary of Advisory Committee Activities

None

7.4 Departmental Reports

7.4.1 RC-2024-07: 2024 User Fees – Adjustment for General Programs

Moved by: J. Dies
Seconded by: L. Bower

1. That Council receive the report titled 2024 User Fees Adjustment for General Recreation Programs for information; and

2. That the amending Fees and Charges By-law included as ATT-1 be endorsed and forwarded to a future Council meeting for approval.

CARRIED

7.4.2 **OES-2024-23: Over Budget Award – 24071001 – Main Branch Library Replacement 3 RTUs**
(Referred from September 9, 2024 General Government Committee Meeting)

Moved by: S. Lee
Seconded by: J. Dies

1. That Council award the Contract for Main Library RTU Replacement, to Canadian Tech Air Systems in the amount of $664,666.00 (inclusive of all taxes).

2. That Council award the contract for Contract Administration Main Library RTU Replacement, to RPJ Atlantic Technologies Canada, in the amount of $7,458.00 (inclusive of all taxes).

3. That Council approve the un-commitment of $420,000 for the 2024 construction portion of Capital Account 23070301 - ACC Replace 5 AHUs Phase II from the Canada Community Building Fund Reserve Fund, to assist with funding the overbudget amount.

CARRIED

8. Regional Councillors' Report

8.1 Regional Councillor's Report – M. Crawford – September 16, 2024

Moved by: N. Henry
Seconded by: R. Tyler Morin

That the report titled "Regional Councillor's Update – M. Crawford – September 16, 2024" be received for information.

CARRIED

Regional Councillor Members provided updates from the Region related to the housing and homelessness crisis.

Moved by: S. Lee
Seconded by: J. Dies

That the Regional Councillors' Reports of September 16, 2024 be received for information.

CARRIED

9. Business Arising from Notice of Motion

9.1 Clean Electricity Regulation

Regional Councillor Crawford and Regional Councillor Lee introduced the motion and reviewed its contents.

Moved by: M. Crawford
Seconded by: S. Lee

WHEREAS emissions from Ontario's electricity grid have nearly quadrupled since 2017 and are forecasted to double again by 2030, according to The Atmospheric Fund's June 2024 Edition of the Ontario Electricity Emissions Factors and Guidelines;

AND WHEREAS on September 16, 2019, Ajax Council passed a motion declaring a climate emergency;

AND WHEREAS on April 19, 2021, Ajax Council passed a motion establishing corporate greenhouse gas emission reduction targets;

AND WHEREAS it will be difficult for the Town of Ajax to achieve our reduction target if Ontario's electricity grid becomes more carbon intensive;

AND WHEREAS Durham Region has branded itself as the 'Clean Energy Capital of Canada,' leveraging this clean electricity advantage to attract new jobs to the Region;

AND WHEREAS expanded use of gas-fired power plants threaten this competitive advantage;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council oppose any new power generation proposal involving increased burning of fossil fuels, including natural gas; and

2. Ajax Council request the Province to immediately invest in programs to deliver energy efficiency, local non-emitting generation, and demand management and conservation to meet the capacity and energy needs that would have been fulfilled by expanding electricity production utilizing fossil fuels; and

3. Ajax Council request that the Government of Canada enact the strongest possible Clean Electricity Regulations (CER) to assist in decarbonization by:

    a. Opposing the extension of the End of Prescribed Life (EoPL) provisions beyond 20 years for facilities which produce electricity through the burning of fossil fuels;

    b. Opposing the use of offsets to permit units to exceed their annual emissions limits;

    c. Maintaining the performance standard of 30 tonnes of emissions per gigawatt hour of electricity produced; and

4. A copy of this motion be sent to the Honourable Jonathan Wilkinson, Minister of Energy and Natural Resources, the Honourable Mark Holland, MP for Ajax, the Honourable Stephen Lecce, Minister of Energy and Electrification, the Independent Electricity System Operator and Environment and Climate Change Canada.

CARRIED

9.2 Provincial Regulations Needed to Restrict Keeping of Non-Native ('Exotic') Wild Animals

Regional Councillor Crawford and Councillor Henry introduced the motion and reviewed its contents.

Moved by: M. Crawford
Seconded by: N. Henry

WHEREAS Ontario has more private non-native ("exotic") wild animal keepers, roadside zoos, mobile zoos, wildlife exhibits and other captive wildlife operations than any other province;

AND WHEREAS the Province of Ontario has of yet not developed regulations to prohibit or restrict animal possession, breeding, or use of non-native ("exotic") wild animals in captivity;

AND WHEREAS non-native ("exotic") wild animals can pose very serious human health and safety risks, and attacks causing human injury and death have occurred in the province;

AND WHEREAS the keeping of non-native ("exotic") wild animals can cause poor animal welfare and suffering, and poses risks to local environments and wildlife;

AND WHEREAS owners of non-native ("exotic") wild animals can move from one community to another even after their operations have been shut down due to animal welfare or public health and safety concerns;

AND WHEREAS municipalities have struggled, often for months or years, to deal with non-native ("exotic") wild animal issues and have experienced substantive regulatory, administrative, enforcement and financial challenges;

AND WHEREAS the Association of Municipalities of Ontario (AMO), the Association of Municipal Managers, Clerks and Treasurers of Ontario (AMCTO) and the Municipal Law Enforcement Officers' Association (MLEOA) have indicated their support for World Animal Protection's campaign for provincial regulations of non-native ("exotic") wild animals and roadside zoos in letters to the Ontario Solicitor General and Ontario Minister for Natural Resources and Forestry;

NOW THEREFORE BE IT RESOLVED THAT

1. Ajax Council calls on the provincial government to implement provincial regulations to restrict the possession, breeding, and use of non-native ("exotic") wild animals and license zoos to guarantee the fair and consistent application of policy throughout Ontario for the safety of Ontario's citizens and the non-native ("exotic") wild animal population; and

2. This resolution be forwarded to the Premier of Ontario, Ontario Solicitor General, Ontario Minister for Natural Resources and Forestry, Region of Durham MPPs, all Durham Region municipalities, AMO, AMCTO, and MLEOA.

CARRIED

9.3 **Support for the 'Solve the Crisis' Campaign and Requesting Action to Address the Growing Mental Health, Addictions and Homelessness Crisis**

Regional Councillor Lee and Mayor Collier introduced the motion and reviewed its contents.

Moved by: S. Lee
Seconded by: S. Collier

WHEREAS a humanitarian crisis unfolding in communities across Ontario requires immediate action at all levels of government, starting with the Province;

AND WHEREAS the homelessness, mental health and addictions crisis continues to grow with 3432 drug related deaths in Ontario in 2023, an estimated 234,000 Ontarians experiencing homelessness and over 1400 homeless encampments across Ontario communities in 2023;

AND WHEREAS according to Regional Report #2024-INFO-40, 'Update on Durham Region's Integrated Homelessness System Action Plan', from May 31, 2024, the Durham By-Name List reported a total of 1045 individuals experiencing homelessness in 2023;

AND WHEREAS while the provincial government has provided additional funding for mental health, addictions and homelessness programs, it does not adequately address the growing crisis and the financial and social impact on municipalities and regions;

AND WHEREAS municipalities and regions are stepping up and working with community partners to develop and implement community-specific solutions, but municipalities and regions lack the expertise, capacity and resources needed to address these increasingly complex healthcare and housing issues alone;

AND WHEREAS mental health, addictions and homelessness is primarily a healthcare challenge that falls squarely within provincial jurisdiction and municipalities and regions should not be using the property tax base to fund community programs;

AND WHEREAS there is no provincial lead focused on this crisis leading to unanswered questions that span over a dozen ministries, and a lack of support to manage the increasing needs of those who are unhoused.

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council confirms support of the Solve the Crisis Campaign and calls on Ajax residents to join us in appealing to the provincial and federal governments for support by visiting SolveTheCrisis.ca; and

2. Ajax Council asks that:

    a. the provincial and federal governments commit to immediate action to solve the Humanitarian Crisis that Ontario is facing as the numbers of unhoused individuals and those suffering with mental health & addictions grows exponentially; and

    b. the province appoint a responsible Minister and Ministry with the appropriate funding and powers as a single point of contact to address the full spectrum of housing needs as well as mental health, addictions and wrap around supports; and

    c. the province strike a task force with broad sector representatives, including municipalities, regions, healthcare, first responders, community services, the business community and the tourism industry, to develop a Made in Ontario Action

Plan and to review proven successful programs in communities to ensure that solutions can be implemented quickly and effectively; and

d. the province establish adequate and sustainable funding to equip municipalities with the tools and resources required to support individuals suffering with mental health and addictions, including unhoused people and those from vulnerable populations that may be disproportionately impacted; and

3. A copy of this motion be sent to the Right Honourable Justin Trudeau, Prime Minister of Canada, the Honourable Sean Fraser, Minister of Housing, Infrastructure and Communities of Canada, the Honourable Doug Ford, Premier of Ontario, the Honourable Sylvia Jones, Deputy Premier and Minister of Health, the Honourable Paul Calandra, Minister of Municipal Affairs and Housing, the Honourable Michael Parsa, Minister of Children, Community and Social Services, the Honourable Michael Tibollo, Associate Minister of Mental Health and Addictions, all Durham Region MPs, all Durham Region MPPs, John Henry, Durham Regional Chair, all Durham Region municipalities, and Ontario's Big City Mayors.

CARRIED

10. By-laws

Council Members asked questions regarding By-law numbers 56-2024, 57-2024, and 62-2024. Mayor Collier and G. Romanowski, responded to questions from Council Members.

Moved by: R. Tyler Morin
Seconded by: L. Bower

That By-law numbers 51-2024 to 58-2024 and 61-2024 to 62-2024 be read a first, second and third time and passed.

CARRIED

Moved by: R. Tyler Morin
Seconded by: M. Crawford

That By-law numbers 59-2024 to 60-2024 be read a first, second and third time and passed.

CARRIED
on 1/3rd

11. Notice of Motion

Motion to Suspend the Rules of Procedure

Moved by: L. Bower
Seconded by: J. Dies

That the Rules of Procedure be suspended in order to introduce a Notice of Motion without notice.

CARRIED
on 2/3rds

11.1 Parking Exemption – Commercial Avenue Neighbourhood

Moved by: L. Bower
Seconded by: J. Dies

That staff be directed to provide Council with a report regarding parking exemptions in the Commercial Avenue neighbourgood for consideration in October 2024.

CARRIED

12. New Business - Notices & Announcements

Council Members highlighted upcoming community events and matters of community interest.

13. Confirming By-Law

Moved by: R. Tyler Morin
Seconded by: N. Henry

That By-law number 63-2024 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its meeting held on September 16, 2024, be read a first, second and third time and passed.

CARRIED

14. Adjournment

Moved by: M. Crawford
Seconded by: R. Tyler Morin

That the September 16, 2024 meeting of the Council of the Town of Ajax be adjourned (5:08 p.m.)

CARRIED

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Mayor and CEO

_____
Clerk